JUSTICE ALITO delivered the opinion of the Court.

This case presents a straightforward question: whether an alien[1] who seeks to enter the United States[2] from Mexico "arrives *in* the United States" when he or she is still *in* Mexico. In the decision below, the United States Court of Appeals for the Ninth Circuit answered "yes." That is wrong. In ordinary speech, no one would say that a person "arrives *in*" a place—for example, a house, a city, or a country—before the person enters that place. The context in which the phrase "arrives in the United States" is used in the immigration statutes at issue here supports an ordinary-meaning reading. So does the presumption against extraterritoriality. We therefore reverse.

## I

### A

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Two sections of the Immigration and Nationality Act of 1952 (INA or the Act), 66 Stat. 163, are central to this dispute. Congress adopted both provisions in substantially their current form in the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (IIRIRA), 110 Stat. 3009–546. And both provisions contain the phrase "arrives in the United States."

The first, 8 U. S. C. § 1225(a), governs the inspection of aliens who seek admission to the United States.[3] An alien

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[1] The Immigration and Nationality Act (INA) defines an "alien" as "any person not a citizen or national of the United States." 8 U. S. C. § 1101(a)(3).

[2] The term "United States," "when used in a geographical sense," ordinarily means the "continental United States, Alaska, Hawaii, Puerto Rico, Guam, the Virgin Islands of the United States, and the Commonwealth of the Northern Mariana Islands." § 1101(a)(38).

[3] The provision states in part: "An alien present in the United States who has not been admitted or who *arrives in the United States* (whether or not at a designated port of arrival and including an alien who is brought to the United States after having been interdicted in international or

who wishes to enter the United States lawfully must first be "admitted." As used in the INA, "admission" is a term of art that means the "lawful entry of [an] alien into the United States after inspection and authorization by an immigration officer." § 1101(a)(13)(A). So an alien cannot lawfully enter this country without first being inspected by an immigration officer, and immigration officers must inspect all aliens "who are applicants for admission or [are] otherwise seeking admission" to the United States. § 1225(a)(3). An alien is deemed an "applicant for admission" if he "arrives in the United States." § 1225(a)(1). The Government correspondingly must inspect an alien who "arrives *in* the United States"—say, at the San Ysidro, California, port of entry through which millions of people pass every year. But an alien is not entitled to inspection until he "arrives in the United States." The meaning of the phrase "arrives in the United States" accordingly determines whether and when the Government must inspect an alien seeking to enter the country.

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The second of the two key statutory provisions, § 1158(a)(1),[4] governs a process that may begin during inspection. During inspection, an immigration officer decides whether the alien is inadmissible under § 1182, which bars entry on grounds related to, among other things, national security, foreign-policy concerns, and the alien's health or criminal activity. If the officer concludes that the alien is inadmissible, the officer must generally "order the alien removed from the United States without further hearing or

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United States waters) shall be deemed for purposes of this chapter an applicant for admission." § 1225(a)(1) (emphasis added).

[4] That provision states: "Any alien who is physically present in the United States or who *arrives in the United States* (whether or not at a designated port of arrival and including an alien who is brought to the United States after having been interdicted in international or United States waters), irrespective of such alien's status, may apply for asylum in accordance with this section or, where applicable, section 1225(b) of this title." § 1158(a)(1) (emphasis added).

review." § 1225(b)(1)(A)(i). This procedure is known as expedited removal.

An officer may not proceed with expedited removal, however, if the alien indicates an "intention to apply for asylum under" § 1158 or voices a "fear of persecution." § 1225(b)(1)(A)(ii). In that event, the immigration officer must refer the alien to an asylum officer for what is known as a "credible fear" interview, at which the alien must establish a "significant possibility" of eligibility for asylum under § 1158. *Ibid.*; § 1225(b)(1)(B)(v). If the officer determines that the alien does not have a credible fear of persecution, the officer must "order the alien removed from the United States without further hearing or review," although the alien may request "prompt" and limited review by an immigration judge. §§ 1225(b)(1)(B)(iii)(I), (III). But if the asylum officer decides that the alien does have a credible fear, the officer must detain the alien for further consideration of the alien's application for asylum.

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Asylum is a status that entitles an alien who is a "refugee" to remain and work in the United States. § 1158(b)(1)(A). A refugee is an alien who is unable or unwilling to return to the country of his nationality "because of persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion." § 1101(a)(42)(A). Any alien who "arrives in the United States" may apply for asylum, § 1158(a)(1), and the Attorney General or the Secretary of Homeland Security may—but need not—grant such an application, § 1158(b)(1)(A).

In sum, an alien that "arrives in the United States" is entitled to inspection, is deemed an applicant for admission, and may apply for asylum. By contrast, until an alien "arrives in the United States," he is not entitled to inspection, is not an applicant for admission, and cannot apply for asylum, except on other grounds not here at issue.

B

In the spring of 2016, U. S. Customs and Border Protection (CBP) began to experience a surge of aliens seeking admis-

sion at ports of entry along the U. S.-Mexico border. The number of aliens seeking to enter sometimes far exceeded the number CBP could properly process. Long delays slowed the inspection process, and, in the meantime, CBP sometimes ran short of chairs, meals, and beds. The resulting conditions were often unsafe for aliens, and they rendered border facilities unsecure.

In November 2016, the Department of Homeland Security responded by adopting a policy of "metering" the number of arriving aliens whom CBP would inspect each day and allow to apply for asylum. To enforce the policy, officials stood on the U. S. side of the border and prevented entry into the United States by more aliens than the port could adequately process.

The metering policy continued through the change in Presidential administrations. In April 2018, a CBP official distributed a memorandum that allowed CBP offices to "meter the flow of travelers at the land border" when "necessary or appropriate to facilitate orderly processing" and to "maintain the security of the port and safe and sanitary conditions." App. 122. The memorandum empowered offices to "establish and operate physical access controls at the borderline, including as close to the U. S.-Mexico border as operationally feasible." *Ibid.* But officers could not "discourage" an alien "from waiting to be processed" if the alien claimed "fear of return" or sought "any other protection." *Id.*, at 122–123. And the memorandum stated that an alien "must be fully processed" once the alien "is in the United States." *Id.*, at 123. The Government reiterated the policy in a second 2018 memorandum, this one issued by the Secretary of Homeland Security. *Id.*, at 124–129.[5]

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[5] As noted above, two different Presidential administrations found that surges of aliens seeking admission at ports of entry along the southern border had overwhelmed those ports' processing capacities and that allowing all these aliens to enter the country created unacceptable conditions at the port facilities. Both administrations found that metering was an appropriate response to the problem, and in reaching that conclusion they

C

In 2017, asylum seekers and the immigration-advocacy organization Al Otro Lado brought a putative class action against the Government in the United States District Court for the Southern District of California. Respondents argued that CBP's enforcement of the metering policy unlawfully withheld inspection and asylum processing from aliens who arrive at the border and seek to enter the United States. They sought class-wide declaratory and injunctive relief that would end the metering policy.

The District Court certified a class of all noncitizens who "seek or will seek to access" the asylum process "by presenting themselves" at certain ports on the U. S.-Mexico border and "were or will be denied access" to that process by CBP officials. App. to Pet. for Cert. 300a, n. 3. The court then granted summary judgment for the class and declared that the Government's "denial of inspection or asylum processing" to class members "who are in the process of arriving in the United States" is "unlawful regardless of the purported justification for doing so." *Id.*, at 253a. The administration

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presumably considered alternatives, such as releasing on parole all the aliens who could not be expeditiously processed. See 8 U. S. C. § 1182(d)(5)(A). As we note below, a third Presidential administration rescinded the policy after a District Court ruled it unlawful.

The centerpiece of the principal dissent is an impassioned argument against the administrations' policy choice, but we have neither the ability nor the authority to assess and countermand that choice. Assessing the policy would require, among other things, extensive inquiry into the number of aliens seeking admission at various ports of entry, the capacities of those ports and available detention facilities, the effects of attempting to detain all the aliens who could not be expeditiously processed, and the effects of alternative policies, such as granting parole. We lack the resources and expertise needed to make such an assessment on our review of the District Court's summary judgment, and more to the point, we lack the authority to do so. Our authority is limited to interpreting and applying the law.

rescinded the metering policy in November 2021, shortly after the District Court ruled the policy unlawful.

A divided panel of the Ninth Circuit affirmed in relevant part. *Al Otro Lado* v. *Executive Office for Immigration Review*, 138 F. 4th 1102 (2025).[6] It held that an alien "arrives in the United States"—and thus must be inspected and may apply for asylum—when the alien, while "standing on" the Mexico side of the border, encounters a United States official at the border. *Id.*, at 1113, 1115. The majority based this conclusion on other language in the provision that allows certain aliens to apply for asylum. Such an application may be filed by not only an alien who "arrives in the United States" but also any alien who "is physically present in the United States." § 1158(a)(1). The majority reasoned that if, as the Government maintained, an alien "arrives in the United States" only when he enters the country, the phrase "arrives in the United States" would be "completely subsumed within the phrase 'physically present in the United States.'" 138 F. 4th, at 1114. The majority stated that its interpretation, by contrast, gave "every clause and word of" § 1158(a)(1) an independent meaning. *Id.*, at 1115. And because § 1225(a)(1), the provision governing inspection and admission, contains nearly identical language, the majority construed it the same way. *Id.*, at 1118–1119. Judge Ryan Nelson dissented. He argued that an alien "arrives in the United States" only when he "crosses the border" into the United States, and he charged that the majority's reading defied "[t]ext, history, precedent, and common sense." *Id.*, at 1129, 1133.

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The Ninth Circuit called for briefing on whether to rehear the case en banc, and 12 judges dissented when the court denied rehearing. Judge Bress, joined by 11 other active

[6] Before reaching the merits, the panel majority held that the Government's rescission of the metering policy did not moot the claim now before us. The dissent did not disagree with that conclusion.

judges, argued that the panel's ruling contravened the "clear statutory text" of §§1158(a)(1) and 1225(a)(1) and was "gravely wrong." *Id.*, at 1168, 1177. Judge Bea and two other senior judges noted their agreement with the dissents. *Id.*, at 1177–1178 (Bea, J., respecting denial of reh'g en banc).

We granted certiorari. *Noem* v. *Al Otro Lado*, 607 U. S. 1040 (2025).

## II

We hold that an alien who is standing in Mexico does not "arriv[e] in the United States" by attempting, and failing, to set foot in this country. An alien "arrives in the United States" only when he crosses the border.[7]

### A

#### 1

We begin by considering what the phrase "arrives in the United States" means when used in everyday speech. That meaning is clear. A person arrives in a geographic location only when he enters it. To "arrive" is to "reach a destination." American Heritage Dictionary 102 (def. 1) (3d ed. 1992); see also Webster's Third New International Dictionary 121 (def. 1.a) (1993) ("to reach a destination: come to the

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[7] We agree with the Ninth Circuit that the case is not moot. The District Court's class-wide declaratory relief, which the panel affirmed, continues to bar the Government from using metering to help deal with border surges within the jurisdiction of the Ninth Circuit. Although the Government has rescinded the metering policy, respondents have not carried their burden to establish that it is "'absolutely clear'" that the Government would not "reimpose" metering if it could. *West Virginia* v. *EPA*, 597 U. S. 697, 720 (2022). To the contrary, the Government represents that metering remains an "important tool," Reply Brief 1, of which it "would likely resume the use . . . as soon as changed border conditions warranted," Pet. for Cert. 26. The controversy remains live because a ruling for the Government could reverse the declaratory judgment and so give the Government "'effectual relief.'" *Chafin* v. *Chafin*, 568 U. S. 165, 172 (2013).

end of a journey"); 1 Oxford English Dictionary 651 (def. 5.a.1) (2d ed. 1989) ("[t]o come to the end of a journey" or "to a destination"). The preposition "in" means "[w]ithin the limits, bounds, or area of." American Heritage Dictionary, at 910 (def. 1.a); accord, 7 Oxford English Dictionary, at 759 (def. 1.a). On these definitions, a person arrives in a destination when he enters within its area—not before.

Everyday examples confirm that understanding. A running back does not arrive in the end zone when he reaches the 1-yard line. A guest does not arrive in a house when he knocks on the front door. An army does not arrive in a city by encamping outside its walls. And a letter does not arrive in a mailbox while it remains in the mail carrier's hand just inches away.

Respondents suggest that the meaning of the phrase "arrives in" shifts when someone "block[s]" the way of the person seeking to arrive. Brief for Respondents 25. In that circumstance, respondents say, to arrive in a place is merely to "be at its threshold." *Id.*, at 23. So, on respondents' view, a person *does* arrive in a house when, although he "is not in the house" and is merely "ready" to "take the step over" the threshold, the homeowner "stand[s] on the other side" and prevents entry. Tr. of Oral Arg. 70. Put simply, an alien "arrives in" the United States by "attempting to come into the United States." Brief for Respondents 20.

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We disagree and return to our earlier examples. The running back does not arrive in the end zone (and six points do not go up on the scoreboard) when he is tackled at the 1-yard line by the defense. The guest does not arrive in the house when the homeowner locks the door right before the guest tries to open it. The army does not arrive in the city when the city's defenders repel the attack outside city limits. And the letter does not arrive in the mailbox when a dog assaults the carrier a step away from the mailbox. A person arrives in a destination only when he enters it, and that con-

clusion does not change because someone or something blocks entry. A person arrives in the United States, then, only when he enters it.

2

Several features of statutory context suggest that the meaning of the phrase "arrives in the United States" in §§ 1158(a)(1) and 1225(a)(1) conforms to ordinary usage. The first is the absence from those provisions of reference to attempted entry. Other provisions of the INA refer to both *actual* entrance into the United States and *attempted* entrance. For example, an alien who "enters or attempts to enter" the country at an improper time or place commits a misdemeanor, § 1325(a)(1), and an alien who "enters" or "attempts to enter" the country after being removed commits a felony, § 1326(a)(2)(B). Immigration officers may arrest aliens "entering or attempting to enter the United States" unlawfully. § 1357(a)(2). We "are required to give effect to Congress' express inclusions and exclusions." *National Assn. of Mfrs.* v. *Department of Defense*, 583 U. S. 109, 126 (2018). So the use of attempt language elsewhere in the INA and the absence of that language in §§ 1158(a)(1) and 1225(a)(1) signal that Congress enacted the disparate language "'intentionally and purposely.'" *Keene Corp.* v. *United States*, 508 U. S. 200, 208 (1993) (quoting *Russello* v. *United States*, 464 U. S. 16, 23 (1983)). An alien who unsuccessfully attempts to arrive in the United States does not arrive in the United States.

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Second, the INA elsewhere refers to aliens who arrive *near* a land border. It empowers the Attorney General to deputize state or local law enforcement to help enforce the Act in the event of an "actual or imminent mass influx of aliens arriving *off the coast* of the United States, or *near* a land border." § 1103(a)(10) (emphasis added). Had Congress meant for aliens who arrive at or near the border to be able to apply for asylum and to be entitled to inspection, it could have said so using similar language in §§ 1158(a)(1)

and 1225(a)(1). Again, we credit that it did not. See *National Assn. of Mfrs.*, 583 U. S., at 126.

Third, Congress easily could have required immigration officers to inspect any alien who "arrives at" or "reaches" the U. S. border. And it could have used similar language in specifying which aliens may apply for asylum. It did something like that in an earlier provision. See § 1158(a) (1994 ed.) (allowing an alien "physically present in the United States or *at a land border or port of entry*" to apply for asylum (emphasis added)). As just noted, the INA uses similar phrases in other provisions. See, *e. g.*, § 1103(a)(10) (referring to "aliens arriving . . . near a land border"). That Congress chose not to adopt those "readily available and apparent alternative[s]" supports our conclusion that the ordinary meaning of "arrives in the United States" controls. *Knight* v. *Commissioner*, 552 U. S. 181, 188 (2008).

Fourth, that Congress amended § 1158(a) in IIRIRA to replace "at a land border or port of entry" with "arrives in the United States" suggests that we should not read those phrases—which carry different ordinary meanings—to have the same meaning. "When Congress amends legislation," we presume that it "intends the change to have real and substantial effect." *Van Buren* v. *United States*, 593 U. S. 374, 393 (2021) (internal quotation marks omitted). Whatever the proper interpretation of the pre-IIRIRA provisions, § 1158(a) now "require[s] that one must be present in the United States to be eligible for asylum." *Sadhvani* v. *Holder*, 596 F. 3d 180, 183 (CA4 2009).

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Respondents contend that our interpretation of the phrase "arrives in the United States" puts too much weight on the Act's use of the preposition "in." According to respondents, "in" tells us little about the meaning of §§ 1158(a)(1) and 1225(a)(1) because "it would make no sense to say someone arrives 'at the United States' or 'upon the United States.'" Brief for Respondents 22. Yet it would be natural to say—and Congress "easily" could have said, had it wanted to adopt

respondents' rule, *Knight*, 552 U. S., at 188—that an alien must be inspected and allowed to apply for asylum if he "arrives at the border," or "near" the border, or "upon" a spot adjacent to the border. Congress did not use those terms.

B

1

Respondents rest their principal textual argument on the same ground as the Ninth Circuit panel majority: the canon against surplusage. Recall that § 1158(a)(1) allows an alien to apply for asylum not only when he "arrives in the United States" but also if he "is physically present in the United States." Respondents correctly observe that an alien who "arrives in the United States" is, on the Government's view, "physically present" in the United States. So, they maintain, the phrase "arrives in the United States" is wholly redundant if read to require physical presence in this country. To avoid that result, they argue, the phrase "arrives in" "must apply to at least some noncitizens who are not geographically 'present in' the country." Brief for Respondents 24. Their alternative interpretation of "arrives in the United States" applies that way, and they urge us to adopt it.

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2

Although that argument has some force, in the end it does not overcome the arguments that point the opposite way. The anti-surplusage canon is not an iron rule. As Justice Scalia put it, the canon expresses "our general reluctan[ce] to treat statutory terms as surplusage." *Freeman* v. *Quicken Loans, Inc.*, 566 U. S. 624, 635 (2012) (internal quotation marks omitted). The canon is based on an inference about how a careful writer or drafter of statutes ordinarily uses language, namely, that such a person is usually economical in the use of words. But even excellent writers do not always trim every unnecessary word, and the same is true of Congress.

We have acknowledged that Congress sometimes "enacts provisions that are superfluous." *Microsoft Corp.* v. *i4i Ltd. Partnership*, 564 U. S. 91, 107 (2011) (internal quotation marks omitted). For that reason, we have adopted interpretations under which, for example, three distinct verbs in the same clause "all mean the same thing." *Freeman*, 566 U. S., at 635. Nor are other examples of redundancy "uncommon." *Ibid.* Some statutes, for instance, pick out a "general" category alongside a "specific" subcategory that "might in other circumstances be deemed surplusage." *Lorenzo* v. *SEC*, 587 U. S. 71, 80 (2019) (internal quotation marks omitted). And statutory context can rebut the "idea that each subsection" must have wholly independent meaning. *Id.*, at 81. The anti-surplusage canon is useful, but it is "subordinate to the 'cardinal canon' that 'a legislature says in a statute what it means and means in a statute what it says there.'" *United States Postal Service* v. *Konan*, 607 U. S. 391, 406 (2026). Respondents thus err in suggesting that the "term 'arrives in' *must* apply to at least some noncitizens who are not already geographically 'present in' the country." Brief for Respondents 24 (emphasis added).

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To bolster their argument, respondents assert that we should reject the Government's interpretation because it yields "pure" surplusage. *Ibid.* That charge, which the principal dissent repeats, is mistaken.[8] Still, it is true that

[8] The reach of the phrase "arrives in the United States" is not the same as that of the phrase "physically present in the United States." The phrase "arrives in the United States" allows the submission of an asylum application by aliens who wish to apply when they arrive in the country. But certain aliens may apply only well after they enter. Some, for example, may have come here on visas but then decided to apply for asylum due to changes in conditions in their home country. Cf. H. R. Rep. No. 104–469, pt. 1, p. 116 (1996) (noting that "visa overstayers account for a substantial portion of those waiting in the 'asylum backlog'"). These aliens are "physically present in the United States," but they are not aliens who apply when they "arriv[e]." Thus, "physically present in the United States" and "arrives in the United States" are not coterminous.

if "arrives in the United States" means "sets foot on U. S. soil," then this category of aliens is a subset of those who are "physically present in the United States." What explains this redundancy?

The most plausible explanation is the link between the "arrives in the United States" language and expedited removal. Both were added by IIRIRA in 1996. Before then, aliens who were "physically present" in the United States could apply for asylum, see § 1158(a) (1994 ed.), but no provision of the INA authorized expedited removal of arriving aliens who were inadmissible under § 1182. The expedited removal process created by IIRIRA begins when an alien "arrives in the United States" and is inspected, see §§ 1225(a)(1), (3), and it seems likely that the "arrives in the United States" language was added to § 1158(a)(1) to correspond with the event—arrival—that triggered this new process. See Tr. of Oral Arg. 21–22 (Government counsel arguing for this explanation of the partial redundancy); Brief for Respondents 8–9 (explaining that IIRIRA added the phrase "arrives in the United States" to "mirror" that phrase's inclusion "in the new § 1225(a)(1)").

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This explanation makes sense of the way that § 1158(a) is framed. A careful writer or drafter of statutes may sometimes include language that is not strictly necessary in order to make an important point as clear as possible. *Lorenzo*, 587 U. S., at 80. And that may well be the reason for the inclusion of the "arrives in the United States" phrase in the provisions in question. This new language in §§ 1158(a)(1) and 1225(a)(1) makes it clear that arriving aliens are subject to expedited removal but that even those aliens may apply for asylum and that, when they do so, their applications are governed by a special process that allows only limited and expedited review of adverse credible-fear decisions. The language allowing applications by aliens who are "physically present in the United States," § 1158(a)(1), was retained in

1996 so that aliens could continue to apply for asylum well after they arrived.[9]

For these reasons, the redundancy that troubled the Ninth Circuit is understandable. At any rate, if forced to choose between an interpretation that entails some redundancy and one that contradicts what words usually mean, we would choose the former. See *United States* v. *Atlantic Research Corp.*, 551 U. S. 128, 137 (2007) (the anti-surplusage canon "does not require us to avoid surplusage at all costs"); A. Scalia & B. Garner, Reading Law: The Interpretation of Legal Texts 176 (2012) ("Put to a choice, however, a court may well prefer ordinary meaning to an unusual meaning that will avoid surplusage").

C

Even if statutory text and context were not enough to reject the Ninth Circuit's and respondents' interpretation of "arrives in the United States," the presumption against extraterritoriality would tip the scale against that position. This presumption is a "'longstanding principle of American law'" under which courts will not give a statute effect outside the territory of the United States unless Congress "'clearly expresse[s]'" a contrary intent. *Morrison* v. *National Australia Bank Ltd.*, 561 U. S. 247, 255 (2010); see *RJR Nabisco, Inc.* v. *European Community*, 579 U. S. 325, 335 (2016) (asking whether Congress "affirmatively and unmistakably instructed" that the statute have extraterritorial effect).

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We ask two questions when we analyze whether a statutory provision applies outside our borders. We first examine the text of the statute and ask whether the provision "unmistakabl[y]" applies to foreign conduct. *Abitron Austria GmbH* v. *Hetronic Int'l, Inc.*, 600 U. S. 412, 417–418

[9] See n. 8, *supra*.

(2023). If it does, the inquiry ends. If it does not, we move to the second step and ask whether the statute focuses on domestic or foreign conduct. *Id.*, at 419.

We have sometimes used the presumption against extraterritoriality to determine whether statutes with more-or-less settled meanings applied outside the United States. See, *e.g.*, *RJR Nabisco*, 579 U. S., at 329, 338. Here, the presumption serves a somewhat different purpose: to determine whether either of two interpretations of the phrase "arrives in the United States" gives extraterritorial reach to the provisions in which that phrase appears. See *Small* v. *United States*, 544 U. S. 385, 388 (2005) ("In determining the scope of [a] statutory phrase we find help in the 'commonsense notion that Congress generally legislates with domestic concerns in mind' ").

The answer is plain. Nothing in the text of § 1158(a)(1) or §§ 1225(a)(1) and (a)(3) manifests an unmistakable congressional intent to require that aliens be inspected and allowed to apply for asylum while they are still outside the United States. We must therefore consider the conduct relevant to the provisions' focus. And on this score, the difference between the two interpretations favors ours. On our view, the provisions link inspection and the asylum process to what occurs on the U. S. side of the border, while the Ninth Circuit's and respondents' interpretation trains its sight on the other side. Because that interpretation would give the provisions extraterritorial reach, we presume that we should not read the provisions that way.

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## III

Respondents' remaining arguments fail. First, respondents are mistaken that the interpretation we adopt allows the Government to violate the obligations under the 1951 Convention Relating to the Status of Refugees, July 28, 1951, 189 U. N. T. S. 150, that the United States assumed through its accession to the 1967 Protocol Relating to the Status of Refugees, Jan. 31, 1967, 19 U. S. T. 6223, T. I. A. S. No. 6577.

The Protocol requires nations to comply with Articles 2 through 34 of the Convention. Article 33.1 provides that no nation "shall expel or return ('refouler') a refugee in any manner whatsoever to the frontiers of territories where his life or freedom would be threatened on account of" certain grounds. 19 U. S. T., at 6276. The Government's metering policy, respondents press, flouts that obligation.

Our precedent forecloses this argument. We held in *Sale* v. *Haitian Centers Council, Inc.*, 509 U. S. 155, 183 (1993), that the "text of Article 33 cannot reasonably be read to say anything at all about a nation's actions toward aliens outside its own territory." Because aliens who are standing in Mexico are outside the territory of the United States, the refusal to allow them to enter does not violate Article 33. In *Sale*, we ruled that Article 33 allowed the Government to "gather fleeing refugees" en masse to "preven[t]" them "from reaching our shores" and to "return them to the one country they had desperately sought to escape" "without first determining whether they may qualify as refugees." *Id.*, at 158, 160, 183. If that course of action is consistent with Article 33, the Article surely allows border officials to stop aliens without valid travel documents from entering the United States until they can be processed in a safe and orderly way. The Convention's bar on refoulement imposes a duty on nations not to send refugees that are within their borders to certain places. It does not establish that refugees have a right to enter a nation at the time they prefer.

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Second, respondents maintain that we should reject the Government's interpretation because it will create perverse incentives for aliens to enter the country illegally. According to respondents, if border officials may turn away aliens who arrive at ports of entry and thus deny them the chance to apply for asylum, some aliens will respond by attempting to enter the country illegally at other locations.

That concern is overstated and in any event cannot defeat the best reading of the text. Metering does not permanently bar any alien from arriving in the United States and

then applying for asylum. It merely delays the date when some may enter. Illegal entry, on the other hand, may be expensive and dangerous, and it carries adverse legal effects. Entry at an improper location is a crime. § 1325(a). An alien becomes ineligible for asylum if he unlawfully re-enters the country after having been removed. § 1231(a)(5). And an alien unlawfully present in the country is ineligible for various government benefits. §§ 1621(a), 1641(b). An alien whose admission and inspection are delayed due to metering would need a powerful reason to apply for asylum immediately for it to be preferable to run all the risks of illegal entry.

Last, respondents argue that acceptance of the interpretation we adopt could cause drastic harm because the Government at some time in the future might prevent all potential arriving asylum applicants from ever reaching the point where an application could be filed. For present purposes, it suffices to say that the rescinded metering policy was never anything like that imagined future policy. The Government's policy merely delayed entry by some aliens as a way of improving a situation that both interfered with the proper conduct of inspection and created unsanitary, inhumane, and sometimes dangerous conditions at ports of entry. If the Government ever adopts the sort of policy that respondents fear, we are confident it would be quickly challenged.

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* * *

The wisdom of the policy of metering alien arrivals at the southern border is not before us. We decide only that an alien standing in Mexico does not "arriv[e] in the United States." The INA neither entitles such an alien to apply for asylum nor requires an immigration officer to inspect him.

We reverse the judgment of the Ninth Circuit and remand the case for further proceedings consistent with this opinion.

*It is so ordered.*